



CHAPTER 115.

An Act to postpone elections of local authorities, to postpone the preparation of the register of electors, to suspend certain powers relating to the alteration of the areas or of the constitution of local authorities, and for purposes connected with the matters aforesaid. [31st October 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. While this Act is in force, no local election shall be held and any alderman, councillor or elective auditor in office at the commencement of this Act shall continue in office:

Postpone-
ment of
local
elections
and exten-
sion of term
of office of
existing
councillors
and others.

Provided that the foregoing provisions shall not prevent the vacation of the office of an alderman, councillor or elective auditor otherwise than by effluxion of time; and in the event of any such office being vacant while this Act is in force, a person to fill the vacancy shall be elected as soon as conveniently may be—

- (a) in the case of an alderman, in like manner as if this Act had not been passed;
- (b) in the case of a councillor, by the council among the members of which the vacancy has so occurred, and
- (c) in the case of an elective auditor, by the council of the borough;

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so, however, that no person shall be so elected to fill any such vacancy if he does not possess the qualifications which, by virtue of any enactment or rule of law, are necessary for holding the office in which the vacancy has occurred, or if he is subject to any disqualification for holding that office.

Postpone-
ment of
preparation
of registers
of electors
and jurors
books.

7 & 8 Geo. 5.
c. 64.

2.—(1) The register of electors prepared, under section eleven of the Representation of the People Act, 1918, in the year nineteen hundred and thirty-eight, shall remain in force until the fifteenth day of November nineteen hundred and thirty-nine.

(2) Notwithstanding anything in the Representation of the People Act, 1918, as amended by any other enactment, the register of electors to be prepared under section eleven of the said Act in the year nineteen hundred and thirty-nine may be published at any time not later than the fifteenth day of November nineteen hundred and thirty-nine.

(3) The register so published shall come into force on the fifteenth day of November nineteen hundred and thirty-nine, and shall remain in force until the fifteenth day of October next following the expiry of this Act; and no further register of electors shall be prepared under the said section eleven while this Act is in force.

12 & 13

Geo. 5. c. 11.

(4) Notwithstanding anything in the Juries Act, 1922, or in any other enactment, the jurors book prepared for a county for the year beginning with the first day of January nineteen hundred and forty shall be the jurors book for that county until the end of the year beginning with the day after that with which this Act expires; and no further jurors book shall be prepared for any county while this Act is in force.

(5) This section shall be deemed to have come into force on the third day of September nineteen hundred and thirty-nine.

Exemption of
certain per-
sons from
duties relating
to local
elections and
to preparation
of registers
and jurors
books.

3. No person shall, by virtue of any enactment or rule of law, be, or be deemed to have been, required to perform any duty solely for the purpose of a local election which by virtue of this Act is not to be held, or solely with a view to the preparation of a register of electors or a jurors book which by virtue of this Act is not to be prepared.

4. The foregoing provisions of this Act, in so far as they relate to councillors, shall apply to the Common Council of the City of London as if the references therein to a local election included references to the election of a common councilman, and as if the references therein to a councillor included references to a common councilman.

Special provision as to City of London.

5. Where by a charter of incorporation granted before the passing of this Act an urban or rural district has been or is to be created a borough, and the first councillors of the borough would, if this Act had not been passed, have been required to be elected on the first day of November nineteen hundred and thirty-nine, then, notwithstanding any enactment or any provision in the charter—

Provisions as to incorporation of certain boroughs.

- (a) the councillors of that district who are in office on that date shall be deemed to have been duly elected councillors of the borough and shall take office accordingly;
- (b) if the number of councillors so taking office is less than the number fixed by the charter as the number of councillors of the borough, the vacancies shall, before any election of the mayor or aldermen of the borough takes place, be filled in the manner provided in section one of this Act for the filling of a casual vacancy in the office of a councillor; and
- (c) the first aldermen of the borough shall be elected in the manner in which they would have been required to be elected if this Act had not been passed.

6.—(1) While this Act is in force, no Order in Council or order made under or confirmed by any Act passed before the first day of August nineteen hundred and thirty-nine shall come into operation so as to—

Suspension of power to make orders altering areas or constitution of local authorities.

- (a) alter or define the boundaries of any county, borough, urban or rural district or parish,
- (b) divide any borough or urban district or parish into wards, or alter the boundaries of any ward in a borough or urban district or parish,

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- (c) group any parishes or dissolve any group of parishes or establish a separate parish council for any parish,
- (d) alter the boundaries of the electoral divisions of any county,
- (e) alter the number of councillors of any county council, borough council, urban or rural district council or parish council or dissolve any parish council,
- (f) form a new urban or rural district or parish,
- (g) divide any county or urban or rural district or parish,
- (h) unite any county with any other county or with any county borough, or unite any county borough with a county, or unite any borough with any other borough, or unite any urban or rural district with any other such district, whether urban or rural, or unite any parish with another parish,
- (i) include in a borough an urban or rural district,
- (j) transfer a part of a non-county borough to an urban or rural district, or transfer the whole or part of an urban or rural district to a non-county borough,
- (k) transfer any part of an urban or rural district to another such district, whether urban or rural, or transfer any part of a parish to another parish, or
- (l) convert any rural district or any part of a rural district into an urban district or any urban district or any part of an urban district into a rural district.

(2) Notwithstanding anything in any enactment, no person or body shall, while this Act is in force, be required to perform any duty with a view to the making of an Order in Council or order for giving effect to any such change as is mentioned in the last foregoing subsection, or with a view to considering the desirability of making such an Order in Council or order.

(3) In this section the expression "order" includes any act or instrument whereby a county council fixes the number of parish councillors for a parish.

7. In this Act, except where the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say— Interpretation.

- “Alderman” means a county alderman or a borough alderman;
- “Borough” includes a metropolitan borough;
- “Councillor” means a county councillor, borough councillor, urban or rural district councillor, or parish councillor;
- “Elective auditor” means an elective auditor of a borough;
- “Enactment” includes any order, rule or regulation made under the provisions of any Act; and
- “Local election” means an election of an alderman of a county or borough, or of a councillor of a county, borough, urban or rural district or parish, or of an elective auditor of a borough.

8. In the application of this Act to Scotland—

Application
to Scotland.

- (a) the expression “councillor” means a member (other than an ex officio member) of a town council, and the expression “local election” means an election of a member (other than an ex officio member) of a town council;
- (b) nothing in section one of this Act shall operate to continue any councillor in the office of bailie or judge of police beyond the date at which he would have ceased to be a councillor if this Act had not been passed, and any reference in any enactment to the day of an annual election of councillors shall be construed as a reference to the day on which such election would have been held if this Act had not been passed;
- (c) where the boundaries of any burgh have been altered by any Act or Order passed or made before the commencement of this Act, and no election of councillors has been held subsequently to such alteration, the Secretary of State may by Order provide for the apportionment of the existing councillors among the wards of such burgh;

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(d) subsection (4) of section two and section five of this Act shall not apply;

(e) in section six of this Act—

(i) the expression “order” includes a scheme made under section twenty-five of the Local Government (Scotland) Act, 1929, but does not include a Provisional Order under the Private Legislation Procedure (Scotland) Act, 1936; and

(ii) for paragraphs (a) to (l) of subsection (1) the following paragraphs shall be substituted :—

(a) alter the boundaries of any county, burgh or district;

(b) divide any burgh or electoral division into wards, or alter the number or boundaries of the wards in a burgh or electoral division;

(c) alter the number of councillors of any county, burgh or district;

(d) alter the boundaries of the electoral divisions of any county, or

(e) form a new burgh.

19 & 20
 Geo. 5. c. 25.
 26 Geo. 5. &
 1 Edw. 8.
 c. 52.

Provisions
 relating to
 Northern
 Ireland.

9.—(1) The register of electors which, under the provisions of sections eleven and forty-four of the Representation of the People Act, 1918, as amended by any other enactment, comes into force in Northern Ireland on the fifteenth day of December nineteen hundred and thirty-nine, shall remain in force until the fifteenth day of December next following the expiry of this Act; and no further register of electors shall be prepared in Northern Ireland under the said provisions while this Act is in force; and section three of this Act shall have effect accordingly.

(2) The last foregoing subsection, so far as it relates to matters with respect to which the Parliament of Northern Ireland has power to make laws, shall, for the purposes of section six of the Government of Ireland Act, 1920, be deemed to be an enactment passed before the appointed day.

(3) Save as provided in this section, this Act shall not extend to Northern Ireland.

10 & 11
 Geo. 5. c. 67.

2 & 3 GEO. 6. *Local Elections and* CH. 115.
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10.—(1) This Act may be cited as the Local Elections and Register of Electors (Temporary Provisions) Act, 1939. Short title
and expiry.

(2) Subject as hereinafter provided, this Act shall expire with the thirty-first day of December nineteen hundred and forty :

Provided that, where the term of office of an alderman, councillor or elective auditor has been continued by this Act after the time at which it would otherwise have expired, that term shall not expire by effluxion of time until six months after the expiry of this Act, unless Parliament otherwise determines.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament